

NIMBLE STATION

Terms of Service and Privacy Policy

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IMPORTANT: These Terms include automatic-renewal and property-lien disclosures, an agreement to individual arbitration, and a class-action waiver. Section 19 explains how to opt out of arbitration within 30 days.

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PART I – TERMS OF SERVICE

1. Agreement to these Terms

These Terms of Service (“Terms”) are a binding contract between you and Nimble Station, LLC (“Nimble Station,” “we,” “us,” or “our”). They cover the Nimble Station mobile app, website, connected lockers, kiosks, customer support, marketplace, transfers, and storage. Together, these are the “Services.”

You accept these Terms by taking the step we show you, such as tapping **I Accept**. We show the Terms before your account is created. We keep a record of the version you accepted and the time you accepted it. The current version is in the app and, when posted, on our website.

These Terms include the Privacy Policy in Part II and the Item Rules in Appendix A. If you do not agree, do not use the Services. **These Terms include an agreement to individual arbitration and a class-action waiver in Section 19. You may opt out within 30 days, as that section explains.**

2. Services overview and Nimble Station’s role

The Services may let eligible users list or transfer personal property, drop off or pick up items in a connected locker, and enroll in a fixed-term or recurring Storage Plan. Some lockers are at sites run by property owners or other partners (“Location Partners”) who help with access, safety, or site operations.

Nimble Station provides the technology, controlled access, lockers, records, and support. Unless a listing says Nimble Station is the seller, we are not the buyer, seller, owner, importer, manufacturer, authenticator, appraiser, escrow agent, payment agent, common carrier, or either user’s agent. We are not a party to a sale or transfer between users.

Buyers and sellers arrange payment with each other, using a lawful method they both accept. Nimble Station does not authorize, capture, hold, escrow, pay out, reverse, or refund an item’s purchase price. We do not offer escrow, buyer protection, or purchase protection. We charge separately for our Services, as Section 6 describes.

When we control physical access to an item, we use reasonable care for the service you selected. Dropping an item off does not transfer ownership to us. Except where a Storage Plan or mandatory law says otherwise, it also does

not make us a warehouseman, common carrier, or insurer.

3. Eligibility, accounts, and security

The Services are not offered to children under 13. If we learn that an account was created for a child under 13, we will close it and delete the related information, except where the law requires us to keep it.

If you are 18 or older, or otherwise a legal adult where you live, you may hold an account on your own. A person aged 13 through 17 may use the Services only as a permitted user on an account held by a parent or legal guardian. That adult must give us their own contact information, affirmatively consent, confirm the account by the method we provide, and keep a payment method in their own name. The adult is the account holder and the contracting party. The adult is responsible for activity and charges on the account and must supervise the minor's use.

A parent or guardian may withdraw consent by contacting us. We may allow a reasonable wind-down, normally 14 days, to retrieve property, finish an open transaction, end a Storage Plan, and pay amounts owed. During that period, access may be limited to those purposes. We may suspend or close an account if we cannot verify consent, or if consent is withdrawn.

You must have the legal capacity to enter this agreement. You must give accurate information, keep it current, protect passwords and pickup credentials, and tell us promptly if you suspect they have been compromised. You are responsible for activity on your account. You may hold one personal account, and separate accounts for organizations you are authorized to bind. You may not use an account to evade a suspension, a limit, or an amount you owe.

You may update your name, handle, phone number, and profile picture at any time from Settings > Edit Profile.

We may verify email, phone, mailing address, payment method, sanctions status, and fraud or risk signals. If the law requires more verification, including for a high-volume seller, we will tell you what we need before we collect it. We may refuse, limit, or suspend access if verification fails, if risk is high, or if the law requires it. The Services are offered in the United States only.

4. Lockers, Location Partners, and access credentials

Use only the locker assigned to you, during the access window shown in the app, and close it securely. Before you leave, confirm the compartment is empty or holds only the expected item. Do not force a door, enter a restricted area, leave property outside a locker, or share a password or access credential except through a feature we provide.

Anyone who has a valid pickup credential may be treated as authorized to open the assigned compartment. Send a credential only to the person who should receive it, and report a lost or compromised credential promptly. We may disable or replace a credential when that is reasonably necessary for security.

Location Partners are not parties to transactions between users. A site service that a Location Partner offers outside the Nimble Station Services is governed by that partner's terms. Do not pay a Location Partner for a Nimble Station charge unless the app expressly tells you to.

A locker or location may be unavailable because of maintenance, connectivity, weather, safety, property rules, legal process, or events beyond reasonable control. We may move an item to another secure location when that is reasonably necessary, and we will notify you when we can. Contact support instead of trying to fix it yourself. Access logs, sensor events, photographs, and security video may be used as Part II describes.

5. Marketplace sales and peer transfers

Seller responsibilities

A seller must own the item, or have authority to sell or transfer it free of undisclosed claims. A seller must give an accurate description and current photographs, and must disclose material defects, alterations, missing parts, authenticity concerns, and safety recalls. A seller must agree on payment directly with the buyer, place the exact item in the assigned locker, properly packaged, by the deadline shown, and respond reasonably to questions, claims, and return arrangements.

Buyer responsibilities

A buyer must review the listing and compatibility information, agree on payment with the seller, and pay the seller directly. A buyer must pick up the item within the window shown, inspect it promptly, secure the locker, and keep packaging, photographs, messages, and other evidence if there is a problem. A buyer may not alter, use, substitute, resell, or dispose of an item and then claim it arrived that way.

Transaction lifecycle

Before drop-off, the item stays with the seller. Drop-off is not authentication, acceptance, or a finding that the listing is accurate. Risk of loss passes to the buyer when the assigned compartment first opens for authorized pickup, except for loss caused by Nimble Station before that moment. Ownership passes as the buyer and seller agree, or otherwise when the buyer accepts the item or the inspection period shown ends without a timely claim, subject to mandatory law.

The transaction screen controls the drop-off, pickup, inspection, cancellation, and claim deadlines for that transaction. Before drop-off, either user may cancel unless the screen says otherwise. After drop-off, cancellation may require approval, and the responsible user may owe the handling, return, or storage costs we disclosed. After pickup, a complaint is a claim or a return, not a cancellation.

If an item is materially different from its listing, or is missing, damaged, counterfeit, recalled, stolen, unsafe, or prohibited, submit a claim in the app by the deadline shown and provide the evidence we reasonably request. A material difference is one that significantly affects value, function, authenticity, safety, or ordinary use. Disclosed wear, minor variation, or buyer's remorse is ordinarily not material.

We may review records, ask for evidence, help users communicate or arrange a return drop-off, waive or refund our own fees, require removal, restrict an account, or report suspected crime. Those are service decisions, not court findings. We cannot refund or order repayment of money paid directly between users. Nothing here limits a right against another user, or a consumer-law right, that cannot be waived.

High-volume sellers must provide the information required by the INFORM Consumers Act or a similar law. We may verify and disclose required information, protect it as required, and suspend a seller who does not comply.

6. Fees, direct payments, taxes, and recurring charges

Fees for platform use, lockers, storage, extensions, handling, damage, or failure to remove an item are shown before you incur them, or are described in a Storage Plan you accept. You authorize Nimble Station and its disclosed payment processor, currently Stripe, to charge the payment method on file for those amounts. The processor handles full card numbers. Nimble Station does not store them.

Payment of an item's purchase price is solely between the buyer and the seller. Nimble Station is not responsible for a failed, reversed, disputed, or fraudulent payment between users. Do not tell us one thing and a bank or payment service another. We may give a financial institution records about a disputed Nimble Station fee.

You are responsible for taxes on your transaction with another user. We collect or report taxes only where the law requires us to.

Refunds of Nimble Station fees follow the terms shown at checkout and applicable law. An approved refund goes back to the original payment method. A refund of an item's purchase price is solely between the buyer and the seller.

Automatic renewal. If you choose a recurring Storage Plan or other recurring Service, the enrollment screen will clearly state the recurring charge, how often you are billed, the term, any minimum commitment, how and when to cancel, and whether the amount may change. By enrolling, you authorize recurring charges until you cancel. We give you a record of those terms after you enroll.

You may cancel in the same way you enrolled. If you enrolled in the app, you may cancel in the app, using a simple in-app control, or through support. Cancellation takes effect as the Plan states. It stops future renewals. It does not erase charges you already incurred.

If the amount or the term will change, we will give reasonable advance notice by email or in the app. Where the law requires a new affirmative consent, or a right to cancel without an extra charge after a price change, we will provide it. If a renewal period is longer than one year, we will send any reminder the law requires.

7. Storage Plans

This section applies only when you accept a recurring or fixed-term Storage Plan. The Plan identifies the space, location, start date, billing period, price, fees, included access, any minimum term, declared-value limit, cancellation rule, and state-specific notices. If the law requires a separate rental agreement or a location supplement, that agreement is part of the Plan and controls the subject it covers.

Keep your contact and payment information current. Use only the assigned space. Keep property entirely inside it. Follow access and safety rules. Remove all property when the Plan ends. A locker may not be used for living, sleeping, working, or conducting business on site.

Storage is at your risk, except to the extent a loss is caused by Nimble Station and the law does not allow us to disclaim that liability. Nimble Station is not an insurer. Keep insurance that fits your property. Do not store property worth more than the declared-value limit in your Plan unless we approve it in writing. Our responsibility for covered physical loss is limited as Section 17 and the accepted Plan describe.

Your Plan may renew automatically, and your property may be sold if you do not pay. Charges continue until the Plan ends, all property is removed, the space is surrendered, and access is closed. If you default, we may deny access where the law allows, and we may enforce a lien, sell property, or use another remedy only under the rental agreement and the law where the locker is located. You will receive every notice, and every chance to cure or redeem, that the law requires.

For a qualifying Virginia facility, the Virginia Self-Service Storage Act, Va. Code Title 55.1, Chapter 29, applies. For another state, the state supplement for that location applies. The statute and current law control over any summary in these Terms.

8. Item condition, loss, and claims

Package items so they can handle ordinary locker handling and the conditions disclosed for the location.

Photograph valuable items, and their condition, before drop-off. When we look into loss or damage, we may ask for serial numbers, receipts, estimates, messages, packaging, or other reasonable evidence.

Unless a Plan you accepted expressly offers more protection, Nimble Station does not provide insurance or a discretionary guarantee. A listing price or a declared value is not proof of actual value. A person making a claim must take reasonable steps to prevent further loss, and must tell us about insurance or other compensation for the same loss. There is no double recovery.

Submit a claim by the deadline shown for the Service. If none is shown, submit it within a reasonable time after you discover the problem. We may inspect records and property, ask for cooperation, and report suspected theft or fraud. These steps do not shorten a limitations period, and they do not remove a remedy the law does not allow us to waive.

9. Prohibited and restricted items

Appendix A lists prohibited items, and restricted items that are allowed only when the conditions shown are met. You are responsible for knowing what you deposit, and for following the law, location rules, size and weight limits, and packaging instructions.

If we reasonably believe an item is prohibited, unsafe, stolen, counterfeit, hazardous, leaking, spoiling, or infested, we may refuse or suspend access, isolate or inspect the item as the law allows, contact authorities, and arrange lawful removal or disposal. You must reimburse reasonable inspection, cleaning, remediation, disposal, storage, emergency, and legal costs caused by your item, except to the extent we caused them or the law forbids that charge.

10. Software license and intellectual property

The Services, including software, interfaces, workflows, text, design, and Nimble Station names and logos, belong to Nimble Station or its licensors. Subject to these Terms, we grant you a limited, nonexclusive, revocable, nontransferable license to use the app and website for their intended purpose. No franchise or other commercial right is granted unless we agree to it in a separate writing.

Except where the law expressly allows it, you may not copy, modify, distribute, sell, sublicense, reverse engineer, scrape, or data-mine the Services, bypass access controls, or use automated means to access the Services without written permission. Open-source components remain under their own licenses.

We may use feedback you choose to give us, without restriction or payment. That does not transfer ownership of content you created separately.

11. User content, reviews, reporting, and copyright

You keep ownership of listings, photographs, messages, reviews, and other content you submit. You grant Nimble Station a worldwide, nonexclusive, royalty-free license to host, copy, format, display, distribute, and use that content to operate, secure, improve, and promote the Services, and to look into disputes, for as long as reasonably necessary. You confirm that you have the rights you need, and that the content is accurate and lawful.

A review must reflect a real experience and must disclose any incentive. We may filter, restrict, or remove content that is fraudulent, abusive, unlawful, threatening, irrelevant, invasive of privacy, or otherwise violates these Terms. We will not remove a review only because it is unfavorable.

The app provides ways to report objectionable content or abusive conduct, and to block another user. **Nimble Station aims to review good-faith reports within 24 hours**, subject to volume, safety, and legal limits, and may remove content or restrict users. If the in-app tool is unavailable, contact admin@nimblestation.com.

For a copyright complaint, send legal@nimblestation.com a signed notice that identifies the copyrighted work, the material you challenge and where it is, your contact information, a good-faith statement that the use is not authorized, and a statement under penalty of perjury that the notice is accurate and that you are authorized to act. We handle notices consistent with 17 U.S.C. § 512. We may remove material, notify the person who submitted it, process a valid counter-notice, and close repeat-infringer accounts. Until a designated agent is registered separately, legal@nimblestation.com is the copyright notice address.

12. Electronic communications and third-party services

You agree that agreements, disclosures, notices, receipts, and other communications may be delivered by in-app notice, email, text message, or another lawful electronic method, and that this satisfies a requirement that they be in writing. Keep a working email address and mobile number on file. Service, security, transaction, default, and legally required messages are part of the Services. Marketing messages are optional. Use the unsubscribe link, or reply STOP. Message and data rates may apply. Calls may be recorded where that is lawful, and after any required notice.

Third-party websites, payment methods, maps, and tools have their own terms and privacy practices. Nimble Station is not responsible for a third-party service it does not control. You must follow applicable third-party terms when you use the Services.

13. Prohibited conduct

You may not use the Services to break the law or another person's rights; move or store stolen goods; harass, threaten, discriminate against, defraud, or impersonate anyone; create sham accounts or transactions; manipulate listings, reviews, evidence, or fees; misuse credentials; interfere with another user's locker; introduce malicious code; disrupt systems; evade a suspension or an amount owed; or cause injury or property damage. Trying to do a prohibited act, or helping someone else do it, is also prohibited.

14. Suspension, termination, and account deletion

You may update your name, handle, phone number, and profile picture at any time from Settings > Edit Profile. You may stop using the Services at any time. To delete an account, go to Settings > Delete My Account. You may also use a deletion path we publish on our website, or contact support. An open transaction, an active Storage Plan, property waiting to be picked up, an unpaid amount, an investigation, a legal hold, or a record-retention duty may delay completion of deletion, but not longer than reasonably necessary.

We may restrict, suspend, or close an account for breach, nonpayment, fraud, a safety or security risk, repeated disputes, unavailable dependencies, ending the service, or legal requirements. We generally give notice and a reasonable chance to cure when we can. We may act immediately for a serious breach or an urgent risk. You may contact support to contest a decision and provide relevant information.

When the account ends, the license in Section 10 ends. Obligations that have already accrued remain. Provisions that by their nature should survive do survive, including payment, ownership, unclaimed property, privacy and retention, indemnity, limitations, and dispute terms.

15. Unclaimed items and storage default

An item is unclaimed if the responsible user does not retrieve, return, redirect, or pay for it after the periods shown in the app. We will send notices to the account contacts we have, and we may charge storage or handling fees we disclosed.

An item left from a marketplace sale or peer transfer is not automatically Storage Plan lien property. We hold it for its owner. After the required notice, we may return it, move it to storage, deliver it to authorities, or dispose of property that is worthless, spoiling, or unsafe, only as the law allows. We do not claim a self-storage lien on a transaction item merely to recover our fees.

Property held under a Storage Plan is handled under the rental agreement you accepted, the applicable state supplement, and the lien and unclaimed-property law that governs. Lawful charges and sale expenses may be deducted from proceeds. Any surplus is handled as the law requires.

16. Disclaimers

To the maximum extent permitted by law, the Services are provided “as is” and “as available.” Nimble Station disclaims implied warranties of merchantability, fitness for a particular purpose, title, and non-infringement. We do not warrant uninterrupted access, error-free software, user identity, payment by another user, item authenticity or condition, listing accuracy, or completion of a transaction.

These disclaimers do not limit a written promise we expressly make, or a right that cannot lawfully be waived. Mandatory consumer protections, including rights that cannot be waived under the law of the state where you live, remain in full effect.

17. Limitation of liability

To the maximum extent permitted by law, Nimble Station and its affiliates, personnel, agents, Location Partners, and providers will not be liable for indirect, incidental, special, exemplary, punitive, or consequential damages, or for lost profits, revenue, data, goodwill, or opportunity, arising from the Services.

Except for a property-custody claim addressed below, our total liability for a claim will not exceed the greater of (a) the fees you paid Nimble Station for the Service giving rise to the claim during the 12 months before the event, or (b) \$100. For loss of or damage to property while it is in our physical custody, liability is limited to the lesser of actual value or the declared-value limit shown for the Service or Storage Plan you selected. Do not deposit property above that limit without our prior written approval. A higher approved value, or a separate written protection term, controls only as that writing states.

These limits do not apply to liability that cannot lawfully be limited, including fraud, willful misconduct, gross negligence, or death or personal injury caused by negligence where the law prohibits a limit. They do not reduce

consumer remedies that cannot be waived.

18. Indemnification

To the fullest extent permitted by law, you will defend, indemnify, and hold harmless Nimble Station and its affiliates, personnel, agents, Location Partners, and providers from a third-party claim, loss, penalty, and reasonable cost or legal fee arising from your item, content, or conduct; your breach of these Terms; your violation of law or of another person's rights; taxes you owe; injury or property damage you cause; or a dispute between you and another user that arises from your act or omission.

This does not require you to indemnify Nimble Station for our own negligence, willful misconduct, or liability that cannot lawfully be shifted. We may control the defense. You may not settle a claim in a way that imposes an obligation on us without our written consent.

19. Disputes, arbitration, and class-action waiver

Please read this section carefully. It affects your right to a jury trial and your right to participate in a class action.

Informal resolution. Before arbitration or court, the person bringing the claim must send an individual written notice to legal@nimblestation.com and to Nimble Station, LLC, 1329 Alum Spring Road, Suite 102, Fredericksburg, Virginia 22401. Describe the account, the facts, the relief requested, and how to contact you. The parties will try in good faith to resolve the matter for 60 days. Applicable limitation periods pause during that time.

Individual arbitration. If the matter is not resolved, a dispute arising from these Terms or the Services will be resolved by binding individual arbitration administered by the American Arbitration Association under its then-current Consumer Arbitration Rules. The Federal Arbitration Act governs this section. The arbitrator may award the same individual relief a court could. Nimble Station will pay the fees the applicable consumer rules require it to pay.

The arbitrator decides questions about the interpretation, scope, applicability, enforceability, or formation of this arbitration agreement, except that a court decides whether the class-action waiver is enforceable and may enforce the exceptions below.

Exceptions. Either party may bring an individual claim in small-claims court if it qualifies; seek emergency injunctive relief; bring a claim about intellectual-property misuse; pursue a statutory lien or possession proceeding; or bring a claim that cannot lawfully be arbitrated. Public injunctive relief may be sought in court where the law makes that right non-waivable.

No class proceedings. Claims may be brought only in an individual capacity, not as a class, consolidated, representative, coordinated, or private-attorney-general proceeding, to the fullest extent permitted by law. If this waiver is unenforceable for a particular claim, that claim is severed and heard in court. The rest of this section remains in effect.

Similar claims. If 25 or more similar demands are filed against Nimble Station by the same counsel, or with that counsel's coordination, the administrator's mass-arbitration rules may apply. Cases may proceed in fair batches or bellwether groups. An outcome binds only the parties to that case. Limitation periods pause while a filed claim waits. No claimant has to wait indefinitely. If a claim has not been assigned to an active batch within 240 days after filing, that claimant may choose individual arbitration or individual court litigation, and we will not object on the basis of this section.

Opt out. You may opt out of this entire arbitration section by sending a signed notice to legal@nimblestation.com within 30 days after you first accept these Terms. State your name, the email or phone on the account, and a clear decision to opt out. Opting out does not affect your use of the Services, and it will not result in different treatment.

For a parent-held account, the adult agrees to this section for themselves and, to the extent the law allows, for a permitted minor user. A minor's claim that cannot lawfully be arbitrated is excluded.

20. Governing law and general terms

Virginia law governs these Terms, without regard to conflict-of-laws rules, except that the Federal Arbitration Act governs Section 19, and mandatory consumer law where you live still applies. A dispute that is not subject to arbitration must be brought in a state or federal court serving Fredericksburg, Virginia, except that a qualifying small-claims case may be brought where the applicable rules allow.

These Terms, Part II, a Storage Plan you accept, an applicable state or location supplement, and the transaction-specific screen are the entire agreement about the Services. A Storage Plan or supplement controls the subject it specifically addresses. The transaction screen controls timing and price for that transaction. Otherwise, these Terms control. Mandatory law always controls.

These Terms do not create a partnership, joint venture, employment, or agency relationship. We may assign them in a merger, financing, reorganization, or sale of the business. You may not assign them without written consent. If a provision cannot be enforced, it will be narrowed or severed to the minimum extent necessary. A failure to enforce is not a waiver. Headings are for convenience. Neither party is liable for a failure caused by events beyond reasonable control.

We may update these Terms for the future. We will post the new effective date and give reasonable advance notice of a material change by email or in the app, and we will ask for renewed consent where the law requires it. If you do not accept a material change, stop using the Services and close your account after you resolve open obligations.

21. App-store terms

If you download the app from the Apple App Store or Google Play, these Terms are between you and Nimble Station, not the store operator. The operator is not responsible for the app, its content, maintenance, support, or claims, except as its own rules require.

For an Apple-distributed app: the license is limited to use on Apple-branded products you own or control, as Apple's usage rules permit, including permitted Family Sharing or volume-purchasing access. Apple has no maintenance obligation. Nimble Station is responsible for product, legal, consumer, and intellectual-property claims about the app. If the app fails to conform to an applicable warranty, Apple may refund any purchase price you paid for the app, and has no other warranty obligation to the maximum extent permitted. You confirm that you comply with U.S. sanctions and embargo rules. Apple and its subsidiaries are third-party beneficiaries entitled to enforce this section.

For a Google Play-distributed app: these Terms are between you and Nimble Station, not Google. Google has no obligation to provide maintenance or support, and is not responsible for claims about the app except as Google's own terms require.

You must follow applicable store terms and third-party terms. Account deletion is available in the app at Settings > Delete My Account. Profile updates are available at Settings > Edit Profile. Send questions or claims about the app to Nimble Station.

22. Contact and notices

Nimble Station, LLC, 1329 Alum Spring Road, Suite 102, Fredericksburg, Virginia 22401. Support: admin@nimblestation.com. Legal notices: legal@nimblestation.com. Privacy requests: privacy@nimblestation.com.

We send notices to the email address on your account, or through the app. A notice from us is effective when delivered. A notice to us is effective when received.

Notice to California users. Under California Civil Code § 1789.3, California users of the Services may contact the Complaint Assistance Unit of the Division of Consumer Services, California Department of Consumer Affairs, 1625 North Market Blvd., Suite N 112, Sacramento, CA 95834, or (800) 952-5210.

PART II – PRIVACY POLICY

1. Scope

This Privacy Policy explains how Nimble Station collects, uses, discloses, keeps, and protects personal information through the Services. It applies to users, people considering the Services, people in a transaction, Storage Plan holders, support contacts, website visitors, and people recorded near participating lockers where Nimble Station controls the processing.

This Policy is part of the Terms. A current copy is in the app, and you can get one by emailing privacy@nimblestation.com, without completing a paid transaction. We will also post a standalone copy on our website when that page is live. Until then, email is the public path. App Store privacy labels and Google Play Data Safety disclosures should describe the same current practices. If a summary differs from this Policy, this Policy controls, and we will correct the summary.

2. Personal information we collect

We collect only information reasonably needed for the purposes below:

- **Account and identifiers:** name, username, email, phone, mailing address, age confirmation or date of birth, profile photo, settings, and, for a permitted minor, the account-holding adult's contact information and consent record.
- **Listings and transactions:** listings, agreed prices, drop-off and pickup records, messages, reviews, claims, returns, and dispute evidence.
- **Payments to Nimble Station:** billing address, processor token, fees, refunds, and chargeback records. Full card numbers are handled by our payment processor, currently Stripe, and are not stored by us.
- **Items and lockers:** descriptions, photographs or video you provide, condition notes, locker identifiers, access times, door logs, and sensor and error events.
- **Device and network:** IP address, approximate region derived from IP, device identifiers, operating system, app version, and crash, usage, and security logs.
- **Communications:** support requests, surveys, reports, and call recordings where that is lawful and after any required notice.
- **Premises security:** camera images from participating locations where cameras are used and appropriate notice is posted.
- **Inferences:** fraud, risk, account-security, and reliability signals drawn from the categories above.
- **Seller verification required by law:** for a seller covered by the INFORM Consumers Act or a similar law, the identification, tax, bank or payee, and contact information the law requires. We tell the seller before we collect it, and we limit use to compliance, safety, and fraud prevention.

You may update your name, handle, phone number, and profile picture at any time from Settings > Edit Profile.

We do not currently use face recognition or create biometric templates. We do not collect precise GPS or Bluetooth-derived location from your device. We do not sell personal information or share it for cross-context behavioral advertising. We do not use advertising or attribution SDKs. If a new feature would collect precise location, biometrics, or another category of sensitive information, we will give specific notice and get consent where required before we collect it.

3. Sources

We collect information from you; your device and browser; connected lockers and participating locations; other users in a transaction; payment, communications, security, analytics, and support providers; public sources; and authorities or business partners, as the law permits.

4. Why we use information

We use personal information to create and manage accounts; verify age and parental consent; provide listings, transfers, lockers, storage, returns, and support; charge and refund our fees; authenticate users; prevent fraud, theft, counterfeit items, abuse, and unsafe access; send service, security, transaction, default, legal, and optional marketing messages; operate, analyze, debug, and improve the Services; enforce agreements; resolve disputes; protect people, property, and rights; meet tax, sanctions, recordkeeping, legal-process, and other legal duties; and establish or defend legal claims.

We may use aggregated or de-identified information for lawful purposes. We do not try to re-identify it, except to test de-identification safeguards or as the law allows.

5. How we disclose information

We may disclose information to:

- service providers, including our payment processor (currently Stripe) and hosting, fraud-prevention, communications, analytics, support, and security vendors, under contract limits;
- another person in the transaction, when that is reasonably needed to complete, document, return, or resolve the transaction;
- Location Partners, for site access, operations, security, and incident response;
- authorities, in response to valid legal process, or when reasonably necessary to report suspected crime, address an emergency, or protect rights and safety;
- professional advisers, insurers, auditors, and financing sources, subject to appropriate duties;
- a buyer, successor, or other participant in a merger, financing, reorganization, or sale, subject to appropriate protection;
- rights holders, when reasonably necessary to investigate counterfeit or infringement reports and permitted by law;
- anyone you direct us to, and the public when you choose to publish a listing or a review.

We may preserve records while we wait for legal process. Where the law allows it, and where notice would not impede an investigation or create risk, we will try to notify an affected user.

6. Cookies, SDKs, device permissions, and communications choices

Our website and app may use cookies, local storage, and software development kits for essential operation, security, preferences, and first-party measurement. Browser settings may control cookies. Device settings control camera, photos, notifications, and any optional permission. Denying an optional permission may limit the feature that needs it. It does not block unrelated features where a practical alternative exists.

You may unsubscribe from marketing email, or reply STOP to marketing texts. Operational or legally required messages may continue while you have an account or an open obligation.

7. Sale, targeted advertising, and universal opt-out signals

We do not sell personal information for money. We do not share it for cross-context behavioral advertising, and we do not use it for targeted advertising as state privacy laws define those terms. Because we do not do those things, an opt-out is not needed now.

If those practices change, we will update this Policy before they begin, provide the required notice and opt-out controls, and honor recognized universal opt-out mechanisms, such as Global Privacy Control, where they apply.

8. Retention and account deletion

We keep information only as long as reasonably necessary for the purposes described. We consider how long the account or transaction lasts; whether property, a Storage Plan, a claim, a dispute, or an investigation is still open; fraud and security needs; tax, accounting, payment-network, lien, and recordkeeping duties; applicable limitation periods; and legal holds.

When information is no longer needed, we delete it or de-identify it. We may keep aggregated information that cannot reasonably identify a person. Backups may remain for a limited time until they are overwritten on the normal schedule.

You may update your name, handle, phone number, and profile picture at any time from Settings > Edit Profile. To delete an account, go to Settings > Delete My Account. You may also use any deletion path published on our website, or contact privacy@nimblestation.com. We delete associated content and personal information unless we reasonably need to keep it for an open matter, security or fraud prevention, legal compliance, or to establish or defend a claim. We explain material retention that applies to a request, and we ask service providers to delete covered information where appropriate.

9. Your privacy rights

Depending on where you live, and whether the law applies, you may have the right to confirm whether we process your information; access it; correct inaccuracies; delete it; get a portable copy; opt out of targeted advertising, sale, or certain profiling; limit certain uses of sensitive data; and appeal a denied request. You will not be treated differently for exercising a right.

Send a request or an appeal to privacy@nimblestation.com. We verify requests in proportion to the request, and we respond within the time the law allows. An authorized agent may act where the law permits, subject to verification. If an appeal is denied, we provide any further complaint method the applicable law requires.

California residents may also contact the Complaint Assistance Unit of the Division of Consumer Services, California Department of Consumer Affairs, 1625 North Market Blvd., Suite N 112, Sacramento, CA 95834, or (800) 952-5210.

Once per calendar year, California residents may request information about personal information we disclosed to other businesses for their own direct marketing in the preceding calendar year (Civil Code § 1798.83, “Shine the Light”). We do not currently disclose personal information to other businesses for their own direct marketing. Email privacy@nimblestation.com to make that request.

10. Children and permitted minor users

The Services are not directed to children under 13, and we do not knowingly collect their personal information. Contact privacy@nimblestation.com if you believe a child under 13 gave us information.

For a person aged 13 through 17 using an account held by a parent or guardian, we process the adult’s contact information and consent record, and information created through the permitted user’s activity. The adult may review, correct, or request deletion of that information, or withdraw consent. Withdrawal closes the account after the wind-down described in Part I.

11. Security and automated review

We use administrative, technical, and physical safeguards appropriate to the information, including access controls, authentication, encryption in transit, logging, and vendor management. No system is perfectly secure. Protect your credentials, and report a suspected compromise promptly. If an incident occurs, we investigate and give any notice the law requires.

Automated rules or models may flag fraud, account takeover, prohibited items, or unsafe activity, and may lead to verification, review, or a temporary restriction. We do not make a decision that produces a legal or similarly significant effect solely by automated means without a path to human review where that is required. Contact support to contest a decision.

12. U.S. processing, changes, and contact

The Services are intended for the United States. Information may be processed in U.S. states where we and our providers operate. If future international processing requires an additional notice or a transfer safeguard, we will provide it before that processing begins.

We may update this Policy for the future. We post the effective date and give reasonable advance notice of a material change, with consent where the law requires it.

Privacy contact: Nimble Station, LLC, Attn: Privacy, 1329 Alum Spring Road, Suite 102, Fredericksburg, Virginia 22401. privacy@nimblestation.com.

APPENDIX A – ITEM RULES

A. Prohibited items

You may never list, deposit, transfer, or store:

- people, live animals, human remains, or bodily materials;
- illegal, stolen, counterfeit, infringing, recalled, or unlawfully imported property, or property used to facilitate crime;
- firearms, ammunition, explosives, fireworks, or a weapon prohibited by law or a location rule;
- tobacco, nicotine, vaping products, alcohol, or other age-restricted goods we do not support;
- controlled substances, illegal drugs, drug paraphernalia, cannabis where it is prohibited, or prescription medicine transferred unlawfully;
- hazardous, toxic, radioactive, corrosive, flammable, pressurized, biohazardous, infectious, or environmentally regulated materials, including fuel;
- leaking, infested, moldy, or odor-producing items;
- child sexual abuse material, non-consensual intimate imagery, exploitative content, or obscene material prohibited by law;
- motor vehicles, watercraft, large machinery, or property that exceeds the posted size, weight, power, or ventilation limits; or
- anything prohibited by law, the location, our insurer, or a payment provider whose rule applies to the Service.

B. Restricted items

The following are allowed only when the app expressly accepts the category and every condition shown is met:

- **Perishable goods and live plants:** packaged to prevent leakage, odor, spoilage, and contamination; accurately marked; lawful under agricultural rules; and picked up within the perishable window shown. Lockers are not refrigerated unless we expressly say they are.
- **Consumer chemicals, pesticides, batteries, and battery-powered devices:** lawful consumer quantities, in original or protective packaging, undamaged, and not swollen, leaking, loose, or otherwise unsafe.
- **Jewelry, precious metals, collectibles, cash, negotiable instruments, gift cards, lottery tickets, cryptocurrency keys, and irreplaceable documents:** only if the category is expressly offered and the item is within the declared-value limit.
- **Items that require a license to possess or transfer:** only when the user holds the license, the transaction and location are lawful, and the item is not prohibited above.

We may refuse a restricted category at a location, set reasonable handling conditions, or require removal. The prohibited list always controls over the restricted list.